

**BEFORE THE
FEDERAL MARITIME COMMISSION**

SAMSUNG ELECTRONICS AMERICA, INC.	)	
	)	
	)	
v.	)	Docket No. 23-01
	)	
SM LINE CORPORATION	)	
	)	
Respondent.	)	
	)	

**SEA’S MOTION TO AMEND THE YOON-JAI (“MARK”) LEE SUBPOENA TO CONFORM
WITH THE AGREED, VOLUNTARY, OVERSEAS DEPOSITION VIA ZOOM AND
MOVING THE JOINT STATUS REPORT DATE**

Complainant, Samsung Electronics America, Inc. (“SEA”), submits this Motion to Amend the Notice of Subpoena *Ad Testificandum* and For Deposition granted by the Honorable Administrative Law Judge Chintella on September 26, 2024 as it relates to Mr. Yoon-Jai “Mark” Lee to set a deposition date of **November 26, 2024 via Zoom at 8 AM EST/10 PM KST**, as Mr. Lee is currently located in South Korea (“Lee Subpoena”). This Motion is filed following the Presiding Officer granting both Complainant’s Motion Requesting the Presiding Officer Issue a Subpoena After the Discovery Cut-off (“Lee Subpoena Motion”) and Motion Requesting a Subpoena to SeaLead Shipping USA, Inc. (“SeaLead Subpoena Motion”), as well as issuing subpoenas related to both, respectively. SEA also respectfully requests that the November 21, 2024 joint status report deadline be extended to December 3, 2024, following the deposition, which will include a plan for any supplemental submissions following the deposition of Mr. Lee.

Following contact between SEA and Mr. Lee, there is a path forward for his deposition to take place via Zoom. The Presiding Officer has the authority to issue a revised subpoena reflecting the agreement for a deposition, as reached between SEA and Mr. Lee directly.

FACTS

Following the October 16, 2024 Order related to the SeaLead Subpoena Motion, SEA submitted its

Subpoena to the Federal Maritime Commission (“FMC” or “Commission”) on the deadline of October 21, 2024. The same day, ALJ Chintella issued the Subpoena *Duces Tecum* and *Ad Testificandum* of SeaLead Shipping USA, Inc. (“SeaLead Subpoena”). This SeaLead Subpoena listed two deadlines, both related to securing the location and/or any relevant information for locating and contacting Mr. Lee. The first deadline listed was for a limited production of documents on November 4, 2024 and the second was for a limited deposition on November 11, 2024. Further, the November 4 deadline passed without any acknowledgement by SeaLead Shipping USA, Inc. of the SeaLead Subpoena deadline or the SeaLead subpoena itself. After serving the SeaLead Subpoena via process server (Skopec Declaration (“Decl.”), Ex. 1), email (Skopec Decl., Exs. 2 and 3), and physical mail (Skopec Decl., Ex. 5). On October 24, 2024, Ms. Pauline Peoples, Senior Manager of SeaLead forwarded the SeaLead Subpoena to SeaLead management, including Mr. Lee. Skopec Decl., Ex. 4. Mr. Lee finally acknowledged the SeaLead Subpoena package on October 27, 2024 over email. In that email and subsequent communications, he advised that he is residing in South Korea, that he will not be in the United States until sometime in early 2025, and that he agreed to provide his home address if SEA withdraws the SeaLead and Lee Subpoenas. Skopec Decl., ¶ 7, 9. On November 12, 2024, SEA and Mr. Lee agreed to the terms of the virtual deposition, setting it for November 26, 2024 *via* Zoom at 8 AM EST/10 PM KST. Skopec Decl., ¶ 10.

ARGUMENT

The Presiding Officer has the authority to execute an amended Lee Subpoena for the limited purpose of conforming the deposition location and terms to the voluntary agreement reached between the party and third party witness. For example, in *Probulk Carriers Ltd. v. Marvel Int’l Mgmt and Transp.*, the court noted that Rule 45(c) aims to avoid unreasonable travel burdens and modified subpoenas to allow parties to stipulate the location for depositions. 180 F. Supp. 3d 290 (S.D.N.Y. 2016). Therein, a third party witness living in Turkey, was subpoenaed to appear for a deposition. *Id.* The third party witness argued that (1) FRCP does not allow for the service of subpoenas on foreign

nonparty witnesses; (2) the subpoenas were an attempt to circumvent the Hague Convention; and (3) the enforcement of these subpoenas would be unduly burdensome because “he is a non party living halfway around the world.” *Id.* The court did not find any of these arguments compelling. It did, however, acknowledge Rule 45(d)(3) permits a court to modify a subpoena that “requires a person to comply beyond the geographical limits specified in Rule 45(c)” and that was the appropriate course in this situation. Thus, the court found it appropriate to modify the subpoena so that the third party witness could be deposed in Turkey, rather than the United States.

Here, as in *Probulk*, it is appropriate for the Presiding Office to modify the original Lee Subpoena to reflect the agreement as to time, date, and location for Mr. Lee’s deposition.¹ Mr. Lee is located in South Korea so conducting the deposition *via Zoom* is not burdensome on Mr. Lee as he will not need to incur any expenses or lose time traveling. The amended personal subpoena will reflect the agreement reached with Mr. Lee.

Concerning the related, but separate subpoena served on SeaLead, it did not respond to the November 4, 2024, deadline to produce the documents in the subpoena, nor the November 11, 2024, deadline to produce a SeaLead deponent. While SEA sent a letter to SeaLead yesterday to advise SeaLead that it is in violation of the subpoena, SEA is not taking any enforcement steps at this time. SEA provides this update for the Presiding Officer’s information and once the deposition of Mr. Lee is conducted, SEA will advise as to the whether the SeaLead subpoena can be withdrawn.

MEET AND CONFER CERTIFICATION

Counsel for SEA has copied counsel for SM Line on the emails with Mr. Lee as to deposition dates, times, and circumstances throughout. In those correspondences, SEA advised it would file a motion to amend Mr. Lee’s subpoena to conform to the agreed time and terms for the deposition.

¹ It is also notable that the *Probulk* deposition was granted prior to video conference technology such as Zoom becoming a ubiquitous aspect of legal practice following the COVID-19 pandemic.

Today, for the sake of good order, once the time and date was agreed last night with Mr. Lee, SEA contacted SM Line for a meet and confer to address this non-dispositive motion. SM Line advised that it was unsure if there was a need for a motion in regard to Mr. Lee and the subpoenas for Mr. Lee and SeaLead should be withdrawn in light of Mr. Lee's voluntary agreement to testify. Counsel for SM Line further advised that, "we want SEA to put into its motion that SEA will withdraw its motions against the two once Mr. Lee's subpoena takes place on 11/26. You can say that SEA does not agree to it."

SEA submits this motion is the proper method to conform the circumstances of the agreement with Mr. Lee to his subpoena. In regard to the SeaLead subpoena, a subpoena where a common carrier regulated by the FMC disregarded two different aspects of a subpoena executed by the Presiding Officer, SEA is not prematurely taking any action at this time. It will conduct the deposition of Mr. Lee and determine if all of the information from the SeaLead subpoena was actually in fact provided by Mr. Lee and report in the joint status report.

On the issue of the joint status report date being moved to December 3, 2024, SM Line advises that SM Line agrees to the request.

CONCLUSION

SEA respectfully requests that the Presiding Officer grant this Motion to Amend the Notice of Subpoena *Ad Testificandum* and For Deposition to (1) account for Mr. Lee's deposition date of November 26, 2024 *via* Zoom at 8 AM EST/10 PM KST; (2) hold the SeaLead Subpoena in abeyance; and (3) extend the joint status report deadline to December 3, 2024.

Dated: November 13, 2024

Respectfully submitted,

HOLLAND & KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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